

FEDERAL MARITIME COMMISSION
Office of Administrative Law Judges

TOYOTA DE PUERTO RICO CORP., *Complainant*

v.

PUERTO RICO PORTS AUTHORITY, CROWLEY PUERTO RICO
SERVICES, INC., AND OCEANIC GENERAL AGENCY, INC.,
Respondents.

DOCKET NO. 19-02

Served: May 28, 2020

BEFORE: Erin M. WIRTH, *Chief Administrative Law Judge.*

ORDER TO FILE ADDITIONAL JOINT STATUS REPORT

On January 3, 2020, an order was issued staying this proceeding until a decision was issued by the First Circuit in the related *Dantzler* proceeding and requiring the parties to file a joint status report within fifteen days of a decision being issued in the *Dantzler* case.

On May 1, 2020, the First Circuit issued a decision in the *Dantzler* case, finding that the plaintiffs failed to establish constitutional standing and that the Puerto Rico Port Authority was entitled to sovereign immunity in its performance of the inspection functions at issue. *Dantzler, Inc. v. Empresas Berrios Inventory & Operations, Inc.*, 2020 U.S. App. LEXIS 14066, at *19 n.6 (1st Cir. May 1, 2020).

On May 18, 2020, the parties filed their third joint status report (“JSR”) jointly requesting that this proceeding continue to be stayed until the decision in *Dantzler* becomes firm and final. JSR at 1. The parties state that the Court of Appeals granted the appellees until May 29, 2020, to file a petition for rehearing. JSR at 1.

The parties are hereby **ORDERED** to provide a fourth joint status report on June 15, 2020, indicating whether or not a petition for rehearing was filed in the *Dantzler* case and any other developments relevant to disposition of this proceeding. The request for a continuation of the stay will be addressed after this June joint status report.


Erin M. Wirth
Chief Administrative Law Judge